PAYMENTWORLD™

ESQUIRE® BANK
100 Jericho Quadrangle #100, Jericho NY 11753. Tel (800) 996-0213

AGENT # _____

MERCHANT PROCESSING APPLICATION & AGREEMENT

1. MERCHANT

LEGAL NAME OF BUSINESS / IRS FILING NAME (**MUST MATCH IRS RECORD**)			DBA (DOING BUSINESS AS)		
LOCATION / SITE ADDRESS			CITY	STATE	ZIP CODE
MAILING ADDRESS (IF DIFFERENT FROM LOCATION)			CITY	STATE	ZIP CODE
COMPANY PHONE #	DESCRIPTOR PHONE # (E-COMMERCE or MOTO)	MOBILE PHONE #	FAX #	CONTACT NAME	TITLE
TAX ID		COMPANY WEBSITE ADDRESS (URL)		COMPANY E-MAIL ADDRESS	

BUSINESS TYPE: ☐ PARTNERSHIP ☐ SOLE PROPRIETORSHIP ☐ PUBLIC CORP. ☐ PRIVATE CORP. ☐ TAX EXEMPT CORP. ☐ LIMITED LIABILITY COMPANY | STATE FILED | BUSINESS START DATE (MM / DD / YYYY)

HAS THIS BUSINESS OR ANY ASSOCIATED PRINCIPAL BEEN TERMINATED AS A VISA / MASTERCARD / AMEX / DISCOVER NETWORK MERCHANT? ☐ YES ☐ NO

HAS MERCHANT OR ANY ASSOCIATED PRINCIPAL DISCLOSED BELOW FILED BANKRUPTCY OR BEEN SUBJECT TO AN INVOLUNTARY BANKRUPTCY? ☐ YES > PROVIDE DATE, IF "YES" (MM / DD / YYYY) ☐ NO

DO YOU CURRENTLY ACCEPT VISA / MC / AMEX / DISCOVER NETWORK? (IF "YES", YOU MUST SUBMIT 3 MOST CURRENT MONTHLY STATEMENTS) ☐ YES ☐ NO

YOUR PREVIOUS CARD PROCESSOR | REASON TO CHANGE ☐ RATES ☐ SERVICE ☐ OTHER | TERMINATED (MM / DD / YYYY)

MERCHANT SELLS: (SPECIFY PRODUCT, SERVICE AND/OR INFORMATION)

DO YOU USE ANY THIRD PARTY TO STORE, PROCESS OR TRANSMIT CARDHOLDER'S DATA? ☐ YES > IF "YES", NAME OF COMPANY, ADDRESS AND PHONE ☐ NO

REFUND POLICY FOR VISA / MASTERCARD / AMEX/ DISCOVER NETWORK SALES
☐ REFUND WILL BE GRANTED TO A CUSTOMER AS FOLLOWS > ☐ VISA / MC / AMEX / DISCOVER NETWORK CREDIT > ☐ 0-3 DAYS ☐ 8-14 DAYS ☐ 4-7 DAYS ☐ OVER 14 DAYS
☐ EXCHANGE
☐ STORE CREDIT
☐ **NO REFUND. ALL SALES FINAL** (MERCHANT MUST NOTIFY CUSTOMERS)

2. BANK & MARKETING DISCLOSURE

Merchant hereby agrees that PaymentWorld, or its affiliates, may communicate with Merchant via email, sms, text or facsimile for any and all purposes. This authorization shall remain in full force and effect notwithstanding you placing yourself on any do not contact or do not call list, unless you opt out of such communications via the methods provided in each such communication, or otherwise contact PaymentWorld via email clientservices@paymentworld.com. If you have opted-out, you may still receive messages or communications from PaymentWorld related to important information about your account

PLEASE INITIAL HERE _____

Member Bank Information: Esquire Bank NA. 100 Jericho Quadrangle, suite 100, Jericho NY 11753. Phone: (800) 996-0213

BANK RESPONSIBILITIES:

1) **Esquire Bank is the only entity approved to extend acceptance of Visa directly to a Merchant.**
2) **Esquire Bank is responsible for educating Merchants on pertinent Visa operating regulations with which Merchants must comply.**
3) **Esquire Bank, not the ISO, must hold, administer and control all reserve funds derived from settlement.**
4) **Esquire Bank, not the ISO, must hold, administer and control settlement funds for the Merchant.**
5) **Esquire Bank must be a party to the Merchant Agreement.**

MERCHANT RESPONSIBILITIES:

1) **Complying with cardholder data security and storage requirements.**
2) **Maintaining fraud and chargebacks below established thresholds.**
3) **Reviewing and understanding the Merchant Agreement.**
4) **Complying with the Network Rules.**

➔ _____
PRINT CLIENT'S BUSINESS LEGAL NAME:

By its signature below, Client acknowledges reading Bank and Marketing Disclosure above and receiving the complete Merchant Terms & Conditions Agreement (v.PW0420-E) consisting of 27 pages. Client further acknowledges reading and agreeing to all terms in the Merchant Terms and Conditions Agreement, which shall be incorporated into Client's Agreement. Upon receipt of a signed facsimile or original of this Bank Disclosure Page by us, Client's Application will be processed. Client understands that a copy of the Merchant Terms and Conditions Agreement and is available for downloading from the Internet at: http://www.paymentworld.com/pdf/TermsConditionsPW0420-E.pdf

➔

CLIENT'S BUSINESS PRINCIPAL SIGNATURE	TITLE	PRINT NAME	DATE (MM/DD/YYYY)

NO ALTERTIONS OR STRIKE - OUTS TO THE MERCHANT TERMS & CONDITIONS AGREEMENT WILL BE ACCEPTED AND, IF MADE, ANY SUCH ALTERATIONS OR STRIKE-OUTS SHALL NOT APPLY

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3. TRANSACTION INFORMATION

FINANCIAL DATA

AVERAGE COMBINED MONTHLY VISA / MC / DISCOVER VOLUME $_____

AVERAGE COMBINED MONTHLY AMERICAN EXPRESS VOLUME $_____

AVERAGE VISA/MC/AMEX/DISCOVER NETWORK TICKET $_____

HIGHEST TICKET AMOUNT $_____

☐ SEASONAL? > HIGHEST VOLUME MONTHS OPEN _____

> CHECK APPLICABLE MONTHS BELOW

☐ JAN ☐ FEB ☐ MAR ☐ APR ☐ MAY ☐ JUN ☐ JUL ☐ AUG ☐ SEP ☐ OCT ☐ NOV ☐ DEC

VISA / MASTERCARD / AMEX / DISCOVER NETWORK INFORMATION

MERCHANT TYPE

- ☐ RETAIL OUTLET
- ☐ RESTAURANT/FOOD
- ☐ LODGING
- ☐ HOME BUSINESS, TRADE FAIRS
- ☐ OUTSIDE SALES/SERVICE, OTHER, ETC.
- ☐ MAIL/TELEPHONE ORDER ONLY
- ☐ INTERNET
- ☐ HEALTH CARE

NETWORK PROFILE (VISA/MC/DISCOVER)

SWIPED CREDIT CARDS _____%

KEYED CREDIT CARDS _____%

TOTAL 100 %

IF KEYED, WHAT % MO/TO _____ %

INTERNET _____ %

MERCHANT RECEIVES IMPRINT ON KEYED TRANSACTIONS ☐ YES ☐ NO

MAIL / TELEPHONE ORDER / BUSINESS TO BUSINESS INFORMATION (ALL QUESTIONS MUST BE ANSWERED BY APPLICABLE TYPE OF MERCHANTS)

WHAT % OF TOTAL SALES REPRESENT BUSINESS TO BUSINESS (VS. BUSINESS TO CONSUMER) B2B _____ % + B2C _____ % = 100% TOTAL SALES

WHAT % OF CREDIT/DEBIT CARD SALES REPRESENT BUSINESS TO BUSINESS (VS. BUSINESS TO CONSUMER) B2B _____ % + B2C _____ % = 100% TOTAL SALES

WHAT IS THE TIME FROM TRANSACTION TO DELIVERY? (% OF ORDERS DELIVERED IN DAYS)

- 0 - 7 DAYS _____ %
- + 8 - 14 DAYS _____ %
- + 15 - 30 DAYS _____ %
- + OVER 30 DAYS _____ %
- TOTAL 100 % DELIVERED

VISA/MASTERCARD/AMEX / DISCOVER NETWORK SALES ARE DEPOSITED ON (CHECK ONE)

- ☐ DATE OF ORDER
- ☐ DATE OF DELIVERY
- ☐ OTHER _____

WHO PERFORMS PRODUCT/SERVICE FULFILLMENT?

- ☐ DIRECT
- ☐ VENDOR (PROVIDE NAME/ADDRESS/PHONE) _____
- ☐ OTHER _____

DO YOU OWN THE PRODUCT / INVENTORY ☐ YES ☐ NO

IS THE PRODUCT STORED AT YOUR BUSINESS LOCATION ☐ YES ☐ NO

IF NO, WHERE IS IT STORED _____

PRODUCT SHIPPED BY: ☐ US MAIL ☐ OTHER _____

DELIVERY RECEIPT REQUESTED ☐ YES ☐ NO

ADVERTISING METHOD(S): CHECK ALL THAT APPLY

☐ NEWSPAPERS ☐ INTERNET ☐ OTHER
☐ MAGAZINE ☐ RADIO
☐ YELLOW PAGES ☐ TV

REQUIRED: ATTACH MARKETING MATERIALS FOR ALL MAIL ORDER, B2B, INTERNET BUSINESSES WITH OVER $1MILLION IN ANNUAL VOLUME. ATTACH WEB PAGE PRINTOUT FOR INTERNET MERCHANTS.

PERCENTAGE OF PRODUCTS SOLD VIA

TELEPHONE ORDERS _____% MAIL/FAX ORDERS _____% INTERNET ORDERS _____% OTHER _____ _____%

WHO ENTERS CREDIT CARD INFO INTO THE PROCESSING SYSTEM

☐ MERCHANT ☐ CONSUMER
☐ FULFILMENT CENTER ☐ OTHER _____

IF CREDIT CARD INFO IS TAKEN OVER THE INTERNET, IS THE PAYMENT CHANNEL ENCRYPTED BY SSL OR BETTER ☐ YES ☐ NO

4. SITE INSPECTION & BUSINESS INFO

ZONE ☐ COMMERCIAL ☐ INDUSTRIAL ☐ RESIDENTIAL

APPROX. SIZE, (SQUARE FOOTAGE) ☐ 0-500 SqFt ☐ 501-2000 SqFt ☐ 2001+ SqFt

MERCHANT LOCATION ☐ SHOPPING CENTER ☐ OFFICE BUILDING ☐ SEPARATE BUILDING ☐ RESIDENCE ☐ MOBILE ☐ OTHER: _____

THE MERCHANT ☐ OWNS ☐ RENTS ☐ LEASES THE BUSINESS PREMISES

LANDLORD NAME

LANDLORD PHONE #

I HEREBY CERTIFY THAT I HAVE PHYSICALLY INSPECTED THE BUSINESS PREMISES OF THE MERCHANT AT THIS ADDRESS AND THE INFORMATION STATED ABOVE IS CORRECT TO THE BEST OF MY KNOWLEDGE AND BELIEF.

➔ _____ SIGNATURE _____ INSPECTED BY (PRINT NAME) _____ DATE (MM/DD/YYYY)

5.CREDIT / DEBIT AUTHORIZATION

BANK NAME _____

BANK ROUTING # _____

BANK ACCOUNT # _____

> MUST ATTACH VOIDED CHECK FROM THIS ACCOUNT

MERCHANT hereby authorizes SERVICERS in accordance with this MERCHANT Processing Agreement to initiate debit/credit entries to MERCHANT'S checking account, as indicated below. The authority is to remain in full force and effect until (a) SERVICERS have received written notification from a MERCHANT of its termination in such a manner as to afford SERVICERS reasonable opportunity to act on it; and (b) all obligations of MERCHANT to SERVICERS that have arisen under this Agreement have been paid in full. This authorization extends to such entries in such account concerning processing fees, lease, and rental or purchase agreements for POS terminals and/or accompanying equipment and/or check guarantee fees, and amounts due for supplies and materials.

6. TRADE REFERENCE

VENDOR	ACCOUNT #	CONTACT NAME	PHONE #

7. EQUIPMENT

PAYMENT GATEWAY > _____ 3rd PARTY PROCESSOR > _____

SOFTWARE > APPLICATION _____ VERSION # _____ TERMINAL MODEL > _____

8. NETWORK ACCEPTANCE

ACCEPT ALL VISA / MASTERCARD / AMERICAN EXPRESS DISCOVER NETWORK TRANSACTIONS (PRESUMED, UNLESS ANY SECTION BELOW ARE CHECKED)

- ☐ ACCEPT VISA CREDIT TRANSACTIONS ONLY
- ☐ ACCEPT VISA NON-PIN DEBIT TRANSACTIONS ONLY
- ☐ ACCEPT MASTERCARD CREDIT TRANSACTIONS ONLY
- ☐ ACCEPT MASTERCARD NON-PIN DEBIT TRANSACTIONS ONLY
- ☐ ACCEPT DISCOVER NETWORK CREDIT TRANSACTIONS ONLY
- ☐ ACCEPT DISCOVER NETWORK NON-PIN DEBIT TRANSACTIONS ONLY
- ☐ ACCEPT AMERICAN EXPRESS CREDIT TRANSACTIONS ONLY

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9. SCHEDULE OF CHARGES / FEES

PAYMENT NETWORK INTERCHANGE COST WILL BE CHARGED IN ADDITION TO:

DISCOUNT RATES:

	QUALIFIED RATE (ELECTRONIC *)	AUTHORIZATION FEE
VISA	_____ %	$ _____
MASTERCARD	_____ %	$ _____
DISCOVER NETWORK	_____ %	$ _____
AMERICAN EXPRESS CREDIT	_____ %	$ _____
SIGNATURE DEBIT	_____ %	$ _____
OTHER _____	_____ %	$ _____

Qualified Rate is assessed when your transactions meet certain criteria set by the applicable Association and Processor. When your Card transactions fail to meet those qualification criteria, we will process your transactions at the higher mid-qualified discount rate of _____% + $_____ or in certain circumstances, at a non-qualified discount rate (Standard*) of _____% + $_____, both rates are a surcharge to the qualified rate.

ERR:

VISA / MC / DISCOVER ☐

QUALIFIED RATE _____ %

NON-QUALIFIED SURCHARGE _____ %

AUTHORIZATION FEE _____

GATEWAY / VT:

GATEWAY NAME _____

GATEWAY MONTHLY FEE $ _____

GATEWAY PER ITEM FEE $ _____

ADD VIRTUAL TERMINAL ☐ YES

WIRELESS OR REMOTE :

SETUP FEE $ _____

TRANSACTION FEE $ _____

MONTHLY FEE $ _____

CHARGEBACK SOLUTIONS: (OPTIONAL)

FOR DETAILED DESCRIPTION SEE: www.paymentworld.com/pdf/mitigation.pdf

CHARGEBACK ALERTS ☐ ETHOCA $ _____ /ALERT ☐ VERIFI $ _____ /ALERT

☐ REPRESENTMENT SERVICES PER CHARGEBACK $ _____

☐ RISK / FRAUD DETECTION $ _____ /MONTH $ _____ /RISK INQUIRY

DEBIT:

MONTHLY ACCESS FEE $ _____

CASH BACK $ _____ MAX

AUTHORIZATION/TRANSACTION FEE $ _____ + NETWORK FEES + _____ %

OTHER FEE $ _____

EBT:

FCS # _____

AUTHORIZATION / TRANSACTION FEE $ _____

MISCELLANEOUS :

		☐ WEB/G2 MONTHLY MONITORING FEE	$ _____
ELECTRONIC AVS FEE	$ _____	☐ CARD UPDATER	$ _____
ACH/BATCH FEE	$ _____	☐ MERCHANT CLUB	$ _____
CHARGEBACK FEE	$ _____	MINIMUM MONTHLY DISCOUNT	$ _____
RETRIEVAL REQUEST	$ _____	APPLICATION FEE	$ _____
SERVICE FEE	$ _____		$ _____

OTHER FEES:

Payment Network Interchange Fees; Debit Network Fees; Returned Item Fee $25 (charged if PW debits the bank account but is rejected due to insufficient funds); Decline Fee – An amount equal to Authorization Fee amount and charged per item declined; Reject Manual Resubmission $ 5; Reject Fee $ 25; TIN/TFN invalid monthly fee: $19.95. Monthly Compliance Fee $3.96 ; PCI Annual Compliance Fee $69.95 ; PCI NON-Compliant Monthly Fee $ 35 (doesn't affect your compliance responsibilities & obligations associated with your merchant account). Early Termination Fee (ETF)–shall be: (a) average monthly processing fees charged to You for previous 12 months (or such shorter time if You have processed for less than 12 months) multiplied by remaining months of the Agreement, or (b) $375 , whichever is greater; Annual Fee $ 99. A Capture per item fee of $ 0.1073 is assessed on each bankcard transaction; Monthly Regulatory Fee $4.95 ; Voice Referral Authorization Fee $3.50; IVR Voice authorization Fee $1.50; BIN/ICA Fee 0.05% . Data Breach Bundle $9.95 .You may be charged a Chargeback Research Fee: $50 per chargeback. If applicable, you may be charged additional pass through card brand fees. See description of card brand fees here: http://www.paymentworld.com/pdf/CardBrandFeeDescription.pdf

10. OWNERSHIP INFORMATION

LIST PRINCIPALS NAMES THAT OWN COMBINED AT LEAST: 25% FOR CORPORATIONS, 100% FOR PARTNERSHIPS

PRINCIPAL NAME (FIRST, ML, LAST)	TITLE	OWNERSHIP (%)	DATE OF BIRTH (MM / DD / YYYY)
1)			

HOME ADDRESS	CITY	STATE	ZIP CODE	HOME PHONE #

SOCIAL SECURITY #	DRIVER LICENSE #	DR.LIC. STATE/EXP DATE	EMAIL	PERSONAL RESIDENCE	FOR HOW LONG?
				☐ OWN ☐ RENT	____ YRS. ____ MO.

PRINCIPAL NAME (FIRST, ML, LAST)	TITLE	OWNERSHIP (%)	DATE OF BIRTH (MM / DD / YYYY)
2)			

HOME ADDRESS	CITY	STATE	ZIP CODE	HOME PHONE #

SOCIAL SECURITY #	DRIVER LICENSE #	DR.LIC. STATE/EXP DATE	EMAIL	PERSONAL RESIDENCE	FOR HOW LONG?
				☐ OWN ☐ RENT	____ YRS. ____ MO.

PRINCIPAL NAME (FIRST, ML, LAST)	TITLE	OWNERSHIP (%)	DATE OF BIRTH (MM / DD / YYYY)
3)			

HOME ADDRESS	CITY	STATE	ZIP CODE	HOME PHONE #

SOCIAL SECURITY #	DRIVER LICENSE #	DR.LIC. STATE/EXP DATE	EMAIL	PERSONAL RESIDENCE	FOR HOW LONG?
				☐ OWN ☐ RENT	____ YRS. ____ MO.

PRINCIPAL NAME (FIRST, ML, LAST)	TITLE	OWNERSHIP (%)	DATE OF BIRTH (MM / DD / YYYY)
4)			

HOME ADDRESS	CITY	STATE	ZIP CODE	HOME PHONE #

SOCIAL SECURITY #	DRIVER LICENSE #	DR.LIC. STATE/EXP DATE	EMAIL	PERSONAL RESIDENCE	FOR HOW LONG?
				☐ OWN ☐ RENT	____ YRS. ____ MO.

CONTROLLING POSITION (FIRST, ML, LAST)	TITLE	OWNERSHIP (%)	DATE OF BIRTH (MM / DD / YYYY)
5)			

HOME ADDRESS	CITY	STATE	ZIP CODE	HOME PHONE #

SOCIAL SECURITY #	DRIVER LICENSE #	DR.LIC. STATE/EXP DATE	EMAIL	PERSONAL RESIDENCE	FOR HOW LONG?
				☐ OWN ☐ RENT	____ YRS. ____ MO.

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11. SIGNATURES

IRS CERTIFICATION

Under penalties of perjury, I certify that:

1. The number shown on this form (Section 1) is my correct taxpayer identification number (or I am waiting for a number to be issued to me), and
2. I am not subject to backup withholding because: (a) I am exempt from backup withholding, or (b) I have not been notified by the Internal Revenue Service (IRS) that I am subject
to backup withholding as a result of a failure to report all interest or dividends, or (c) the IRS has notified me that I am no longer subject to backup withholding, and
3. I am a U.S. citizen or other U.S. person (defined below), and

Certification Instructions:

You must cross out and initial #2 above if you have been notified by the IRS that you are currently subject to backup withholding. IRS Form W-9 instructions available upon request.

IMPORTANT INFORMATION ABOUT PROCEDURES FOR OPENING A NEW ACCOUNT:
To help the government fight the funding of terrorism and money laundering activities, federal law requires all financial institutions to obtain, verify, and record information that identifies each person who opens an account. What this means for you: When you open an account, we will ask for your name, address, date of birth, and other information that will allow us to identify you. We may also to see your driver's license or other identifying documents.

CERTIFICATION OF BENEFICIAL OWNER(S)

To help the government fight financial crime, Federal regulation requires certain financial institutions to obtain, verify, and record information about the beneficial owners of legal entity customers. Legal entities can be abused to disguise involvement in terrorist financing, money laundering, tax evasion, corruption, fraud, and other financial crimes. Requiring the disclosure of key individuals who own or control a legal entity (i.e., the beneficial owners) helps law enforcement investigate and prosecute these crimes.

By signing below, I attest that I have accurately provided the name, address, date of birth and Social Security Number (SSN) for the following individuals (i.e. the beneficial owners):

(i) Each individual, if any, who owns directly or indirectly, 25 percent or more of the equity interests of the legal entity customer (e.g., each natural person that owns 25 percent or more of the shares of a corporation); and

(ii) An individual with significant responsibility for managing the legal entity customer (e.g., a Chief Executive Officer, Chief Financial Officer, Chief Operating Officer, Managing Member, General Partner, President, Vice President, or Treasurer).

The number of individuals that satisfy this definition of "beneficial owner" may vary. Under section (i), depending on the factual circumstances, up to four individuals (but as few as zero) may need to be identified. Regardless of the number of individuals identified under section (i), you must provide the identifying information of one individual under section (ii). It is possible that in some circumstances the same individual might be identified under both sections (e.g., the President of Acme, Inc. who also holds a 30% equity interest). Thus, a completed form will contain the identifying information of at least one individual (under section (ii)), and up to five individuals (i.e., one individual under section (ii) and four 25 percent equity holders under section (i)).

I, the undersigned _____, certify that all of the information furnished
PRINCIPAL / OWNER:
above with regard to information for each individual, if any, who directly or indirectly, through any contract, arrangement, understanding, relationship or otherwise, owns 25 percent or more of the equity interests of the legal entity listed above is complete and accurate.

➔ _____ SIGNATURE: _____ DATE (MM/DD/YYYY)

Client certifies that all information set forth in this completed Merchant Processing Application is true and correct and that Client has received a copy of Merchant Terms & Conditions Agreement (v.PW0420-E) and Bank Disclosure Page, which is part of this Merchant Processing Application (consisting of Sections 1-11), and by this reference incorporated herein. **(Merchant Terms and Conditions Agreement can be downloaded from http://www.paymentworld.com/pdf/TermsConditionsPW0420-E.pdf)** Client expressly acknowledges and certifies that Client has read the said Merchant Terms and Conditions Agreement, and Client agrees to be bound by its terms including but not limited to the early termination fee provision. Client further agrees that Client will not accept more than 20% of its card transactions via mail, telephone or Internet order. However, if your Application is approved based upon contrary information stated in Section 3, (Transaction Information section above), you are authorized to accept transactions in accordance with the percentages indicated in that section. Client authorizes PW and BANK and their agents (a) to procure information from any consumer reporting agency bearing his/her personal credit worthiness, credit standing, credit capacity, character, general reputation, personal characteristics, or mode of living, and (b) to contact all previous employers, personal references and educational institutions. It is our policy to obtain certain information in order to verify your identity while processing your account application. The individual who signs this Agreement has authority to do so and to bind its Establishment to the terms and conditions of this Agreement. You further represent that you are authorized to sign and enter into this Agreement on behalf of your establishment, subsidiaries and affiliates, and that you authorize American Express® Travel Related Services Company, Inc. to verify the information on this Application. Client agrees to all the terms of this Merchant Processing Application and Merchant Terms and Conditions Agreement. This Merchant Processing Application and Merchant Terms and Conditions Agreement shall not take effect until Client has been approved and this Agreement has been accepted by PW and Bank.

➔ MERCHANT PRINCIPAL 1 SIGNATURE	TITLE	PRINT NAME	DATE (MM/DD/YYYY)
➔ MERCHANT PRINCIPAL 2 SIGNATURE	TITLE	PRINT NAME	DATE (MM/DD/YYYY)
➔ ISO SIGNATURE	TITLE	PRINT NAME	DATE (MM/DD/YYYY)
➔ ESQUIRE BANK SIGNATURE	TITLE	PRINT NAME	DATE (MM/DD/YYYY)

PERSONAL GUARANTEE

The undersigned guarantees to PW and Bank the performance of this Agreement and any addendum thereto by Client, and in the event of default, hereby waives Notice of Default and agrees to indemnify the other parties, including payment due and owing and costs associated with enforcement of the terms thereof. PW and Bank shall not be required to first proceed against Client or enforce any other remedy before proceeding against the undersigned individual. This is a continuing guarantee and shall not be discharged or affected by the death of the undersigned and shall bind the heirs, administrators, representatives and assigns and be enforced by or for the benefit of any successor of PW and Bank. The term of this guarantee shall be for the duration of the Merchant Processing Application and Merchant Terms and Conditions Agreement and any addendum thereto and shall guarantee all obligations which may arise or occur in connection with my activities during the term thereof through enforcement shall be sought subsequent to any termination.

➔ SIGNATURE	PRINT NAME OF GUARANTOR	DATE (MM/DD/YYYY)
➔ SIGNATURE	PRINT NAME OF GUARANTOR	DATE (MM/DD/YYYY)

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